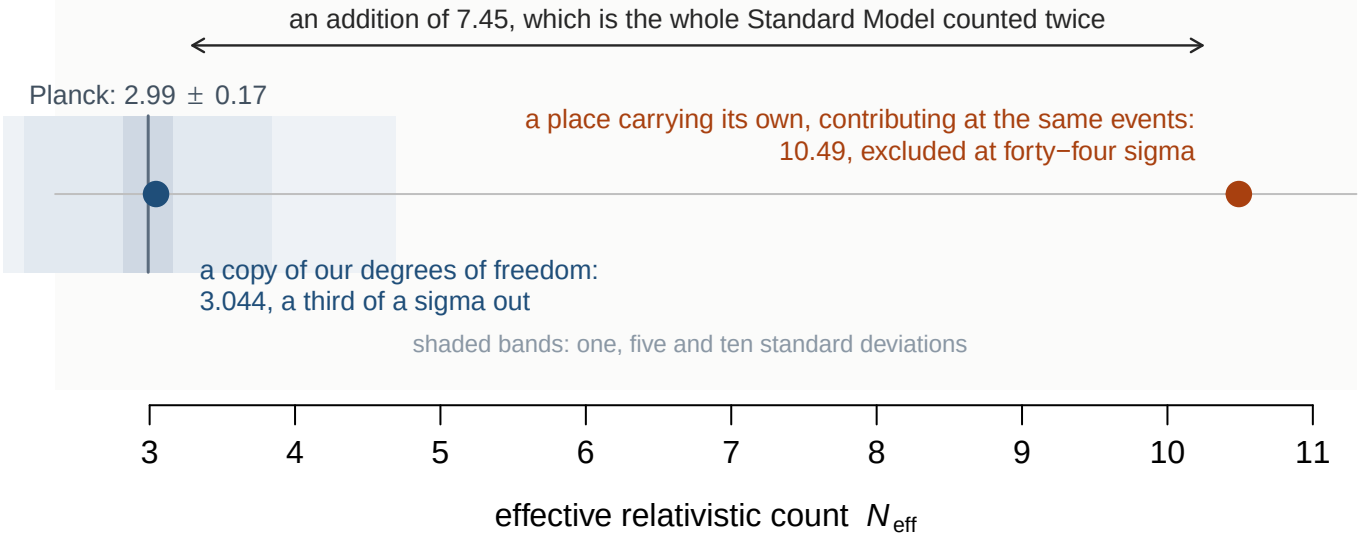the test that looks decisive, and the reason it does not apply